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JODE GOUDY

RIGHT & RESPECTFUL RELATIONS: A MEMOIR OF THE ROAD TO THE HISTORIC YAKAMA NATION
AMICUS BRIEF CHALLENGING 'CHRISTIAN DISCOVERY' IN WASHINGTON STATE V. COUGAR DEN

Abstract

This personal memoir, *Right & Respectful Relations*, chronicles his journey as Chairman of the Yakama Nation Tribal Council and his involvement in the historic amicus brief challenging the Doctrine of Christian Discovery in *Washington State v. Cougar Den*. Drawing on his experience as Chief Operating Officer of King Mountain Tobacco, Goudy reflects on the complexities of asserting Yakama treaty rights under the 1855 Treaty, which guarantees the Nation “exclusive use and benefit” of its lands and unfettered access to public roadways, protected under the U.S. Constitution. The details of the interplay of federal, state, and tribal law, including the challenges posed by historical legal precedent tracing back to *Johnson v. McIntosh*.

Through personal narrative, the authour illustrates the tension between Indigenous sovereignty and imposed legal structures, interweaving lessons from their grandfather about resilience, endurance, and spiritual reflection. The memoir provides an intimate account of the strategic development and filing of the Yakama amicus brief, the confrontation with non-Native legal systems, and the assertion of cultural identity – including ceremonial regalia – before the U.S. Supreme Court.

This article situates these legal and political struggles within the broader context of a 500-year history of colonial domination, emphasizing the need to challenge foundational myths, such as the Doctrine of Christian Discovery. Beyond litigation, the memoir addresses integrity, leadership, and the pursuit of Right and Respectful Relations, illustrating the ongoing work required to achieve Native self-determination, cultural preservation, and equitable systems for future generations.

Keywords: Doctrine of Christian Discovery, Yakama Nation, Federal Indian Law, Plenary Power, Treaty Rights, Indigenous sovereignty, cultural identity, tribal council, Native cultural preservation, resilience, imposed legal systems, foundational myths, equitable systems, asserston of cultural rights, and pursuit of justice & equity.

RIGHT & RESPECTFUL RELATIONS: A MEMOIR OF THE ROAD TO THE HISTORIC YAKAMA NATION
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Delbert: "What is the greatest challenge you face in working with kids?"

Me: "The greatest challenge is the funding. The funding comes from grants and most of the work is justifying what you are doing and then documenting and reporting it. This makes it so that smallest part of the work is the actual work with the kids."

Delbert: "Come work with us. Help build these companies, and when we become successful enough, we will set money aside, and that money will be dedicated to working with kids the way that you want to."

My Introduction to the Doctrine of Christian Discovery

I clicked on the link and began to read the case. Hmmmm ... *Johnson v. McIntosh* ... ok Soon after, I became frustrated and discouraged ... sigh ... I am lost on the damn internet again. There is no way that this is a Supreme Court Case. I've got to be looking at some make-believe case or a mock case ...

Working late was a common thing for me at this time in my life as the Chief Operating Officer of King Mountain Tobacco. We grow, manufacture, and sell tobacco to the market. We are in a fight with the ATF and the FBI. The fight is over taxation and regulation of tobacco sales with other Native Nations, the United States, and in different states as well. Part of my job was to manage our legal fights. We had many.

This night I am attempting to do my own research. The question is simple: Why is it that Yakama has won some Treaty fights throughout time and lost others? The thought process to us about our Treaty is quite simple.

We are Yakama.

Yakama Nation has a Treaty with the United States agreed upon in June of 1855.

Article Two of the 1855 Yakama Treaty states:

"All which tract shall be set apart and, so far as necessary, surveyed and marked out, for the **exclusive use and benefit** of said confederated tribes and bands of Indians, as an Indian reservation."

Article Three of the 1855 Yakama Treaty states:

"And provided, That, if necessary for the public convenience, roads may be run through the said reservation; and on the other hand, the right of way, **with free access from the same to the nearest public highway, is secured to them;** as also the right in common with citizens of the United States, **to travel upon all public highways.**"

Article Six of the US Constitution states:

"This Constitution, and the Laws of the United States which shall be made in Pursuance thereof; and all Treaties made, or which shall be made, under the Authority of the United States, shall be the Supreme Law of the Land; and the Judges in every State shall be bound thereby, any Thing in the Constitution or Laws of any State to the Contrary notwithstanding.

"The Senators and Representatives before mentioned, and the Members of the several State Legislatures, and all executive and judicial Officers, both of the United States and of the several States, shall be bound by Oath or Affirmation, to support this Constitution; but no religious Test shall ever be required as a Qualification to any Office or public Trust under the United States."

The simplicity of all of this to us: The Treaty states that our lands were set aside for our "exclusive use and benefit". It also affords an opportunity to take our goods to market with free access to all public roadways to do so. The US Constitution says that Treaties are the supreme law of the land, and all the Judges in every State are bound to them. It also states that the legislators of the US and the States, executive officers, and judicial officers shall be bound by oath to abide by the Constitution. There are cases that are Yakama wins that reinforce this position and interpretation. There is supporting case law from other Native Nations that support this position. So how is it that taxation and regulation by the US and the States can impose upon our ability to generate revenue and create opportunity?

I'm missing something. We've sought out and worked with many attorneys and law firms on these issues. Why are their arguments different when it comes to the development of the legal briefs as we are discussing and working through this? The attorneys are intelligent and good people and seem to be understanding what we are saying, but all of this doesn't make sense; something is missing.

A discussion with my grandfather

Grandpa: "Sonny, Long ago in the time of the animal people there were two Suns that brought light and warmth to the Earth. There was the Sun that you see in the sky today, and the Moon was the second Sun. It too provided light and warmth to our Mother Earth and all upon it. The moon took it upon itself to make a choice. 'I will shine brighter.' Soon the animals felt the warmth. It began to get too warm. It got hot and the plants began to wither and the water began to dry up. The animal people knew that if this continued there would be suffering. They called a council to discuss what was happening and a decision was made that they would pray to our Creator to correct this. After a time, our Creator heard the prayers of our animal relatives and decided to call the moon forth. Creator spoke to the moon. 'What are you doing? It is I who had provided you this light and you are shining too brightly. You are warming the ground too much and it is beginning to hurt the animals, plants, and water.' After the scolding, Creator sent the moon back into the sky of our Mother Earth. Moon thought about what Creator said but decided to shine even brighter, bring more warmth. It got very hot. Soon the plants withered and died. The water dried up and became scarce. The animal people suffered. They called council together again. Prayed to Creator to fix what is happening. Creator heard their prayers and brought moon before him. 'I told you what you were doing was wrong. You shined too brightly and now you have killed the plants of the Earth. You have dried up much of the water. The animal relatives are suffering. I will punish you. To the same sky I send you but now I strip from you the light which I have given you. There in the sky you will remain.'"

Grandpa: "So Sonny, when you look at the moon today, what do you see?"

Me: "I still see it in the sky. In the day sometimes and most nights as well."

Grandpa: "When you see it in the sky, does it still shine?"

Me: "Yes."

Grandpa: "Is the light that shines from the moon its own light?"

Me: "No."

Grandpa: "Whose light is it?"

Me: "Its a reflection of the Sun's light."

Grandpa: "This is what you face today. You will burn. Your family will burn. I am not here to tell you why you all have been chosen to burn. Except to say perhaps it's because you can endure it. But I ask you what happens to the ground when it burns?"

Me: "It becomes scorched and barren."

Grandpa: "Then what happens?"

Me: "It grows back stronger and more plentiful."

Grandpa: "So I tell you that if you are all able to endure the fire that you are in, the ground will become replenished, and our people will become replenished. So, the question is simple. Do you believe in what you are fighting for?"

Me: "Yes."

Grandpa: "The federal government is the representation of the moon. It brings a harsh light that it calls law, that is man's law. That law burns the ground, the plants, the water, and the people. The light it burns us with is not from the Creator. It is a reflection of what they proclaim to be the true light. You can step out of this fire whenever you choose. But if you stay within it this is what you stay and fight for. So, you must ask yourself again, do you believe in what you are fighting for?"

Back to work

Frustrated with being lost on the internet and finding what I believed to be a mock or make-believe case, I decide to call it a night and go home. I went to work the next morning and did my usual routine. I began to look at all of the Native news sites. I came upon *Indian Country Today* and while scanning through the articles one caught my eye. "*Johnson vs. McIntosh: the Foundation of Federal Indian Law*". Wow, I thought to myself. I was reading about that last night. I read the article and realized I wasn't lost on the internet last night. What? That case is real? It's the origin of Federal Indian Law? Who the hell wrote this article? Written by Steven T. Newcomb. Ok, who the hell is Steven T. Newcomb? So, I google-searched his name. I found him. Wait a second, there's a phone number. I called it, and Steven T. Newcomb answered.

What followed was a few hours of discussion with Steve. This was my introduction to the "Doctrine of Christian Discovery". I was intrigued and excited to share this with my boss, Delbert. He became convinced that we needed to understand this better. Eventually we contracted with Steve Newcomb to do some analysis specific to the King Mountain fights. We brought Steve up to the Company for a few days to do some face-to-face follow up. I recall the first day of that interaction in our board room with the CEO and the GM of the company and

listening to Steve talk about the word “domo” all day. The interactions seemed to address a very important question, the “something is missing” in my understanding of our fights.

The outcome of all of this interaction was an advocacy to incorporate “Doctrine” arguments into the King Mountain case(s). Unfortunately, it wasn’t done. The attorneys we worked with at the time indicated that because of the procedural steps and existing filings it would not be possible to insert these arguments at that time. Although we believed that they should be inserted no matter what, we reluctantly agreed to move forward without the Doctrine arguments in the case.

One of the arguments that was included in the initial brief in Federal District Court was a pathway following the dispute resolution clause laid out within the Yakama Treaty. This pathway was clarified in the minutes of the Treaty that memorialized the negotiations between the United States and Yakama. That Treaty pathway for dispute resolution stated that if there was a dispute between the US and a Yakama member, that member was to take the dispute to the 14 Chiefs of the Yakama Nation and or the Head Indian Agent and abide by their decision.

We took the taxation and regulation dispute to the 14 Chiefs of Yakama, who were the 14 Tribal Council members of Yakama at that time. We explained the dispute and asked them to decide whether they agreed or disagreed with our determination that we were within the boundaries of our Treaty to conduct business as we were. The Yakama Council agreed. Eventually, the Yakama General Council, which is our Peoples Meeting (Yakama enrolled members), ratified that decision. We abided by the dispute process laid out within the minutes of the Treaty.

In addition to the Chiefs’ decision, we asked for a determination from the United States “Head Indian Agent” noted in the Treaty. The US indicated that the Assistant Secretary of Interior was that individual. The Treaty minutes indicated that if the dispute continued to go unresolved, that the Head Indian Agent had an obligation to take that dispute to the “Great White Father” referenced within the Treaty. The Great White Father was the President of the United States. The President had an obligation on an annual basis to discuss and resolve all disputes with the Head Chief of the Yakama, as indicated within the minutes of the Yakama Treaty. The Head Chief was the current Tribal Council Chairman.

Following Treaty procedure, we asked President Obama through the Assistant Secretary of Interior to meet with our Tribal Council Chairman to discuss and resolve this dispute. We knew going in there was a strong unlikelihood that the President would follow through and fulfill his obligation of dispute resolution laid out within the Treaty. But the effort was documented and inserted into the initial filings of the King Mountain brief.

The outcome of this effort to follow the Treaty was nothing. The Federal District Court Judge exercised “judicial discretion” and punted this argument – ignored and not acknowledged at all in the decision and ruling. I remember reading the ruling from Judge Peterson on the King Mountain case out of Federal District Court. We lost. I couldn’t believe it. How the hell is she justifying all of this? Regardless, our effort to follow the Treaty fell in line with our interpretation that the judicial branch of the United States was not the proper pathway identified for dispute resolution within the Treaty fight.

We were raided by the ATF and FBI at the company. Delbert was the main target of the investigation. I and a couple of others were secondary targets; but it was made clear to Delbert

and us that our whole families would continue to be attacked. Part of the madness of it all was that some of our own people proclaimed us to be potential criminals after seeing news articles of the raid and the fight.

We as enrolled members of the Yakama Nation had to eventually go and explain ourselves and the fight before the General Council Meeting. I and the others stepped forward to explain to our people what was going on. It was then that the people began to listen to my words clarifying what this was all about. At that time, some people began to say it was a good idea that I should be a Tribal Council member of the Yakama Nation.

The Story of King Mountain

King Mountain is part of a larger group of enterprises that Delbert and Trina Wheeler had created. Delbert Wheeler started all of it with logging many years ago. He married my sister Trina, and they continued and eventually formed entities in construction, retail, farming, and cattle, all of which joined with tobacco manufacturing as the materialization of "opportunity". It is no secret that there is little opportunity – as in "jobs" – on Native lands.

Their dream has always been to create opportunity, and they did. Delbert was in many people's eyes a very controversial man. I was fortunate enough to know and understand him in a different way than most. The best of what he had to offer this world was greater than most, in spite of people's views of him. He passed away in the middle of this fight. We were fighting for something that is hard to understand in some ways and very easy to understand in others. It was an honor to fight along his side.

My time with King Mountain represents an intense period in which I and others I love "burned". The fight was to provide opportunity for our people within the interpretation of law as it manifests in the practical world. The force that stood against that was and is a claimed right of domination. Physical and mental domination. I've seen and felt the harshness of life that it presents. So, my family and I carry the life experience of knowing what it is like to fight for what you believe in with your life and your freedom on the line.

This story I share is to clarify how I was introduced to the Doctrine of Christian Discovery. I remained in contact with Steve Newcomb throughout my time at King Mountain, learning more and more each time we were able to speak and correspond. This knowledge, unfortunately, was unable to have a significant impact on the outcome of the fight as it manifested in litigation. But it resonated strongly within our hearts as a deeper truth about what we were fighting and how it was playing out. I began to understand how Judge Peterson got away with ruling in the King Mountain case the way she did. And I will never forget.

The story of King Mountain and Delbert and Trina Wheeler hasn't been told in a way that speaks to the truth of everything. I don't know if it ever will. I represent only a small piece of that overall story and can only acknowledge that multiple expressions from various viewpoints would probably be necessary to tell it all. A number of things came to light in this battle including some significant misgivings about the Federal Government. My sister Trina Wheeler and others continue to fight to provide opportunity today. They continue as well to "burn" in the harshness of America's claimed right of domination.

Tribal Council

"I nominate JoDe Goudy for Tribal Council." I can't remember who nominated me, but it was at the General Council meeting for our people of the Yakama Nation. Tribal Council elections were happening. I declined my nomination. I had absolutely no intention of becoming a Tribal Council member. Afterward, I received a scolding from a number of our elders and other Yakama who were at the meeting: "When someone nominates you, you don't decline that nomination!"

The next Meeting came up and I reluctantly accepted another nomination to become a Tribal Council member. The election was against the incumbent, who was my uncle, Sam Jim. He was a beautiful elder and a leader within the Shaker faith, one of the religious followings of our people. He had spoken to me a couple of weeks earlier hinting that he may step away from being a Council member for our people but wishing that someone young would step forth in his place. I had won the runoff of other nominees which meant that now there would be a vote between him and me as to who would be on the Council. We were taken to another room to allow the vote of the people to happen, a hand vote of the Yakama members present that day: Yakama is old school; we have what some may call a true form of "democracy" when voting and making decisions for our Nation.

I immediately told my uncle Sam that I didn't feel good about any of this. I let him know that I was going to go back out and decline all of this. He said, "No. Wait." He then began to tell me the story of how he first became a Council member, feeling the same way, not wanting to run against the elders who led our Nation at that time. When he finished telling me his story, I said, "That's good, uncle, but I still can't go through with this." Just then the General Council Sergeant at Arms opened the door and said, "They're ready for you guys; the vote is done." I walked out to find that my uncle had beat me in the election. I was so happy and told our people that it was an honor to lose to our elder.

That was the second of seven council positions that were up for election that year. I was nominated for each of the five remaining positions, and I declined every one of them. I didn't care at that point who was mad at me, and I took some more scoldings for doing so. Then it was time to elect the two Tribal Council alternates. The alternates are put in place in case a Council member is unable to fulfill their service to the people. So, my aunt Bernice Jim, who is the wife to Sam Jim, goes up as fast as she can and nominates and encourages me to accept her nomination for me to be an alternate. She was quite effective in guilting me into accepting, and ultimately, I was elected as the 1st alternate to the Yakama Nation Tribal Council. I thought to myself, "Well hey. Maybe I'll learn some things and try to make the best of it."

We were still in the fight with the Federal Government at King Mountain. About six months into being an alternate, one of the Tribal Council members decided that he was going to resign his position. After much deliberation, I reluctantly assumed his position and became a full Tribal Council member. I did not want to leave our family in the fight that it was in. I feared about who would fill my role and continue to contribute to help in that fight. Ultimately, it was Delbert who helped convince me to follow through and become a Council member. He said, "You go down there and be yourself. Do the right thing. Help our people. Help our Nation. Because that's who you are. Go do the right thing. Even if it hurts us, the businesses, or me, you do the right thing."

Because I never wanted to be a Tribal Council member in the first place, my philosophy was simple: I'm here to do the right thing, as best I can. As much as some people may accuse me of

being in Tribal Council for my family or special interest groups, I am here to do the right thing. And if people don't like it, they can throw me out and remove me from Tribal Council. Because I never wanted to be a Council person in the first place. I've lived within the harshness of the fight with the Federal Government for some time now. Now I am going to serve our people as a Tribal Council member. I go into this with a deeper understanding of the "fight" and a deeper understanding of the Doctrine of Christian Discovery.

Harry Smiskin was the Chairman of the Yakama Nation Tribal Council at this time. He is a good man and served as a good chair. Unfortunately, he too, along with his wife and their son, faced a couple of battles with the ATF concerning tobacco, where the Federal Government was attempting to put them in prison. They beat the charges.

Serving as a Tribal Council member, I imagine, is like a lot of other elected official positions in this world. You have an idea in your mind and heart of what you think it is to serve in such a position, and then you start serving and find it's not quite what you had imagined. Although I didn't want to be a Tribal Council member, I wasn't there to fail either. So, I began to roll up my sleeves and put in the work. If I could succeed, it would help our way of life, our Nation, our People, and our resources.

Shortly after assuming the position of a full-time Council member, I was informed that the Yakama Nation "Code of Ethics" board was investigating my involvement in the King Mountain fight. If found guilty of any violations, I could have been removed from my position. I cooperated with their investigation fully and simply told the truth and provided documentation to support my testimony. The Code of Ethics board eventually determined that I had done nothing that warranted my removal as a Council member, and they closed the case.

I was inserted into the position and committee assignment of the former Council member who had resigned. I did my best to fulfill the duties of those assignments. I spent a significant amount of time learning what being a Council member of the Nation entailed. The expectation of our Chairman and fellow Council members was that if you were at the Council table, you were expected to know your job and lead appropriately. As one might expect from the circumstances of my previous employment, I had a unique motivation driving me. In spite of the continuous battle my family was in, and the fact that from the Federal Government's perspective I was still part of that battle, I had a job to do.

There are some unique challenges that face elected leaders of Native Nations. I will reference some of them, but out of respect for Yakama, our Nation, its former leaders, its current leaders, and our people, I will not speak to the specifics of those challenges in much detail.

For the next year and a half, I served on the Council and worked on many issues. I learned a lot and observed a lot. I planted seeds with our Chairman about the Doctrine of Christian Discovery and the impact I believed it was having on our Nation. I sensed not a reluctance but a need for clarification of the relevance of what I was sharing and why. I sometimes referenced the Doctrine in my interactions with representatives from the Federal Government as well as the State of Washington. The references were met with looks and sometimes responses of confusion. Not only confusion from our visitors, but sometimes confusion from my fellow leaders of Yakama. Nonetheless, I knew the truth about the Doctrine and was looking for more and more ways to incorporate the knowledge of it into my role as a leader of our Nation. In hindsight, I see this as a period where I assumed the role of "bad cop".

As bad cop, I could essentially be the bad guy at our Council table, expressing extremely tough views for a representative of the Federal or State Government to hear. As much as I enjoyed doing this, I came to feel that I was playing a game. Part of the game was this: "JoDe we appreciate that you like to express truth to the representatives from the Federal or State government. It's good to share that truth with them. But you can't just let them have it every time, because we need their help and cooperation in many issues that impact our Nation." No one actually said this to me. But I sensed it, and unfortunately and reluctantly realized it myself. But how am I to speak about the Doctrine of Christian Discovery and how it relates to specific issues to representatives from the Federal or State government who seem to know nothing about it? That was not a game.

I spoke to representatives from the Department of Interior, Department of Energy, Department of Justice, Corp of Engineers, Bonneville Power Administration, Department of Agriculture, US Attorneys offices, Bureau of Indian Affairs, Indian Health Service, Bureau of Indian Education, and pretty much all of the State of Washington's representatives, and for that matter everybody else who dealt with the Nation.

No one knew what the hell I was talking about when it came to the Doctrine of Christian Discovery. Many times, I believe my words provoked the thoughts, "Who is this young Yakama Council member who's talking about history I've never heard of? He's pretty passionate in the way he talks about it; but really, I have no idea what the hell he is talking about. How do I take his words and utilize them in a way that addresses the current issue we are talking about? Even if what he says is true, what the hell am I supposed to do about all that? That's a little above my pay grade, and really, I don't believe I'm the right person he should be speaking to about all of this history. I'm here to do my job as I understand it. I'm not some dominator."

So, in spite of my love of the role of "bad cop", I realized that I still had to play the game of politics. A lot of my speaking in the first year and a half of being a Council person was trying to find the boundaries or balance. I imagine that in the eyes of many of the Federal and State representatives, they saw no balance or conscientious effort on my part to be subtle or perhaps not harsh in my expressions. But I tried.

Yakama is a warrior Nation. Always has been. We warred with the United States and recorded victories, and those victories are part of the history that resulted in a "peace" Treaty with the United States. After the Treaty was signed, we went to war again with the United States. So, there has never been a reluctance for our Peoples to stand and fight for our way of life and for what we believe in. Yet in spite of this, I realized that even though there is a storied history of the great Nation that is Yakama, there were few if any who had the knowledge of the Doctrine of Christian Discovery and what that means in our relationship to the United States. This is not to ridicule our great Yakama leaders of the past, but more to speak to the effectiveness of the domination system in all of its shapes and forms. Very simply put, you don't know what you don't know. And how could you know it if there has been an extremely well thought out system to veil or hide it from your sight and mind?

I began to analyze deeper and deeper observations about how the Doctrine impacts our Nation. The challenge was that I had no one to speak to about the Nation side of that observation. I continued my dialog with Steve Newcomb through all of this, in continuing efforts to educate myself. I reached a clearer understanding, including a realization about the

significance of so-called “US Plenary Authority”. We will talk about that a little later. I came to understand many things about the Doctrine, but as with everything else you have to repeat your thought process over and over and continue to educate yourself as you attempt to make sense of it all.

Let me make clear that my education about the Doctrine of Christian Discovery has been a nearly 17-year journey. That education continues today and will continue into the future. Somewhere in this time period, Steve had spoken about another man who had significant knowledge about the Doctrine. His name is Peter d’Errico. I continue to reach out to Steve and Peter to educate myself as much as I can to this day about the Doctrine. A proper understanding of the Doctrine is a challenge and takes a significant commitment of time and effort.

Around 2013, it was election time again. Unfortunately, Chairman Harry Smiskin lost his election. I was reelected, and ultimately the outcome was the Yakama Tribal Council selected me to be the new Tribal Council Chairman. I assumed those duties and began to understand very quickly that the responsibilities of the Chairman were vast. I took these responsibilities very seriously and my advocacy for Doctrine awareness within the Nation became stronger.

Without getting into details about all the responsibilities, there are some that are very relevant to this conversation. One is that the Tribal Council Executive Committee, made up of the Chairman, Vice Chairman, and Executive Secretary of the Council, have oversight of the Office of Legal Counsel—the Nation’s attorneys. Another is that the Chairman, with the same other members, heads the Budget and Finance Committee.

The Attorneys

The Yakama Nation Office of Legal Counsel was already in a state of transition when I assumed the role of Chair. At that time, we had two attorneys on staff and many contract attorneys. A young staff attorney, Mr. Ethan Jones, carried the load until we hired a new lead attorney for the office. Our other attorney was on maternity leave. The selection for lead was Ms. Patrice Kent, a Yakama descendant. With her, we began a process to fill other positions. It didn’t take Patrice long to understand that I intended to incorporate Doctrine history, knowledge, and practice into the functioning of the Office of Legal Counsel. Patrice was a good attorney, but she struggled with the practice of Doctrine knowledge in the Office’s function. I know she knew my intentions were strong to do this. It was hard for her, and she was reluctant. But I also understood this wasn’t entirely her fault.

In my view, there is something very wrong with the way attorneys represent Native Nations. It’s not just the attorneys themselves; it’s the overall framework. I am not an attorney, but whether it is a blessing or a curse, I’ve worked with many attorneys and law firms. For the most part, when a dispute happens between a Native Nation and the US or a jurisdiction within the US, there is a course of action imposed upon the Native Nation that the dispute will be navigated through the judicial branch of the United States. There isn’t a choice given to Native Nations. In today’s time, this is where a Native Nation dispute is resolved and that just seems to be the way it is. One of the rules of this dispute resolution mechanism is that to practice as an attorney you must be admitted to the Federal Bar. By passage of the Federal Bar an attorney agrees to adhere to the system of argumentation. An attorney prepares for potential admission by going to law school, spending significant time and money to learn to

navigate and practice within the judicial system. If an attorney operates outside the rules and procedures of this system, they run the risk of being sanctioned, or even disbarred and unable to continue their legal practice.

The judicial system functions upon the basis of precedent – past decisions. The attorneys on both sides of the dispute develop citations of precedents to create arguments why they should win a particular dispute. So as far as “Federal Indian Law” is concerned, the judicial precedents originate in *Johnson’s Lessee v. McIntosh*¹. This precedent is not only the beginning of Federal Indian Law, but also the origin of US property law.

Now Comes the “Bad Cop”

“Bad Cop” questions his attorneys, “What do you know about the origin of Federal Indian Law?” The attorneys usually answer with some general response that the origin is based upon a case called *Johnson v. McIntosh*. This case and *Cherokee Nation v. Georgia* and *Worcester v. Georgia* are referred to as the “Marshall Trilogy”, the three cases that are the origin of Federal Indian Law. Bad Cop questions further and asks what was the basis of the decision in *Johnson v. McIntosh*? Some attorneys stumble with the answer; others indicate that it was based upon the Doctrine of Discovery. “Very good”, bad cop says. “So, if you know that the origin of the judicial will exercised in *Johnson v. McIntosh* is the Doctrine of Christian Discovery, what does that mean today?”

Bad cop doesn’t give his attorney a chance to answer, because the rhetorical questions must come to an end. So Bad cop answers the question, something like this:

“It means that the origin of Federal Indian Law is based upon a false religious pretense. It is not questioned that Chief Justice John Marshall asserted the Doctrine of Christian Discovery as his justification to exert domination upon all of the lands, waters, and so-called ‘heathens and infidels’ who lived in these lands. But when he did so, he identified the United States as a country that adheres to and follows a God of Domination, or as a country whose claim of land title is based upon a lie. So, in a sense, everyone who follows the legacy memorialized within *Johnson v. McIntosh* is adhering to a God of Domination or a lie. I don’t believe you to be a follower of a God of domination. So, are you a liar? What would it mean if your entire career were a practice founded upon a precedent of deception? “Wow, like is my whole life a lie?”

“Because not only was the ruling of *Johnson v. McIntosh* based upon either a God of Domination or a lie, but the case itself was a lie. The parties to the case were liars, the facts of the case were lies. The Chief Justice used a number of lies within his opinion, and the rest of the Justices agreed with those lies, contributed to lies, and benefitted from lies. The case was a falsified land dispute brought before the Supreme Court.

“Furthermore, Chief Justice John Marshall had a significant personal interest in the case because of his and his family’s own substantial land claims. The entire case was a lie and a fraud! And every case that has come behind it, using it as a precedent, is based upon the totality of lies within it: A falsified land dispute which was justified either by adherence to a God of Domination (which I also proclaim to be a lie) or an outright lie itself.”

¹ *Johnson v. McIntosh*, 21 U.S. 543 (1823).

Bad Cop rests his case

Now I must proclaim that I didn't give it to our attorneys this tough, although a couple of them may argue otherwise. But what I said is a truth that can only be realized when you look at "Federal Indian Law" from a perspective *outside* the framework of that system of domination. For the most part, the law schools that our attorneys studied at are operating *within* the framework of the system of domination, whether they acknowledge it or not. These law schools do not teach the truth about where the practice of "Federal Indian Law" comes from. They teach how to operate within it, and how to become successful in its practice. And yet its practice reinforces its shameful origin and sustains its future.

The truth is that the Federal Bar is one of countless tentacles of the system of domination to assure that the system is not only never questioned but also continues to operate and reinforce itself through its very operation. On top of that, an attorney who has invested a substantial amount of time and effort to materialize their practice thinks, "I am an attorney. I have the answers. I am here to fight and win on behalf of my client. If I do not win on behalf of my client, I risk becoming unemployed. I must win. The utilization of the judicial precedent is the manner in which I was taught to win. I'm not here to question the origin nor the function of all of this. That is not what I was taught, and it is not how you win."

It's not in an attorney's nature to acknowledge these things because it attacks their professional identity. Having invested so much time and effort in the name of seeking justice for Native Peoples, there is no way to acknowledge that their field of practice is founded in deception and every action conducted within it adds layers of deception to sustain it.

Forgive me, to all of you "federal Indian law" attorneys who may read this and take offense, but from my perspective it is true. You can sue me if you like, but I'll represent myself *pro se* and put forth a defense that your field is founded in a falsified religious pretense or that you are just a liar. Just about every attorney I know is a good person; some are extremely beautiful people. Some I consider my brothers or sisters; they may not consider me as one after they read this. You are more than likely very good and beautiful people; it's just I find your practice to be rather peculiar.

I am aware that an attorney may be sanctioned for arguing against settled case law. I am aware of the risk of challenging the origin of it all and the potential Pandora's box of what that may bring about. The status quo, cautious argument is this: If you challenge the origin lie, you risk the wins that we have been able to achieve in cases. In spite of the domination system and the way that it operates, there are many examples of attorneys who have navigated that system and won a positive judicial decision. This is true. There have been wins.

But my question is this: Where does the trajectory of this course of current practice of law collectively lead us? I argue that it leads us to the very thing that we proclaim we are fighting against: "Termination" of our so-called "federal recognition" as Native Nations, and the eventual non-existence of our ways of life. I ask any attorney to prove it to me otherwise. Prove to me that the path we are on does not lead to this outcome. And those who are bold enough to respond will say you can't know what the future holds. So, their strategy is to essentially kick the can down the road and hope that this isn't the outcome. All the while watching as case by case, ruling by ruling, strips away the practical defense of our physical, mental, and spiritual existence. Is there an attorney out there who wishes to contradict that this is the trajectory of

the course that we are on? Step forth in the light of truth and convince me. Better yet, convince yourself.

There are a few attorneys who have been willing to go down this path and dialog with me; I asked them this: "What is the current state of the physical, mental, spiritual wellbeing of our Native Peoples? I observe and experience it to be in a state of chaos. For me, it is not 'out of sight, out of mind.' It must be nice to sit behind a desk in your office or classroom and ponder a conscientious kicking of the can down the road. All the while, out and amongst the lands our people are suffering in a state of chaos because of a system of domination based upon outright deception. But isn't that what you are here for? To represent the people, our lands, our waters, or our ways of life in the forum of dispute resolution? If you identify the people, lands, and ways of life as a client, do you acknowledge no personal interest in potential negative outcomes of your representation? So, who are you Federal Indian Law attorneys of the world? Where do you come from? Where are you going?"

I'm writing pissed off because I am. I see murder, rape, sexual abuse, violence, alcohol and drug abuse, and all the other forms of negativity ravaging our Nations. A collective state of mental chaos manifests, combined with a physical state of chaos, which makes it nearly impossible for our spiritual state of awareness to manifest. We struggle to connect with spirit because we can't overcome the mental and physical challenges before us. This keeps us collectively lost, not understanding who we really are as a People and what our Original Free Existence means, not understanding where we truly come from as Peoples and Nations. And if we collectively don't understand who we are and where we come from, we for damn sure don't know where we are going.

My last offer of criticism that I intend as constructive is this: To the world of Federal Indian Law. I am a man of faith who believes in our Creator. How is it that I am expected as a man of faith to adhere to the lie that is Federal Indian Law as a pathway to address the wellbeing of our Peoples and respective ways of life? How is it that an attorney may give legal advice based upon a foundation of deception as a strategy to sustain our existence? Spiritual and Natural Law cannot manifest nor be adhered to within deception. It is my belief that following Spiritual and Natural Law is the true path that will lead us to being able to manifest physical, mental, and spiritual wellbeing. A wellbeing our ancestors would feel good about and generations coming behind us can feel good about. A wellbeing that the Spirit approves.

So, as a non-attorney, I'll offer some suggestions that can be considered by the Federal Indian Law community:

Number one: Quit conceding to the lie(s) of judicial precedent in the development of your briefs and argumentation.

Second: Understand your role. You are not elected leaders. As Chairman of our Nation, I saw the legal tail wagging the elected dog all over Native Country. That means everywhere I went Native leaders were being led around by their attorneys, not expressing their own hearts or minds but that of their attorneys. Even more disturbing was watching attorneys speaking out of line and asserting their will without even acknowledging or getting the nod from elected Native leaders. Your knowledge is a representation of what the Federal Government says about the issues for which you are providing representation. You were schooled by an apparatus of the legal system called Law School. You are governed by another apparatus

called the Federal Bar. You are not governed by the Original Free Existence of our Peoples and Nations. Your practice is an extremely important intersection in which the essence of our Original Free Existence meets the system of domination.

In my opinion, the greatest tool that exists for Native leaders is understanding our Original Free Existence. That time period represents ways of life in the year of 1491, going backwards to Creation. The greatest blockage that obscures observing, understanding, appreciating, and invoking our Original Free Existence as a guide in the day-to-day function of Native Nations is the modern-day legal opinion. That doesn't mean that a modern-day legal opinion is unimportant. But there must be a rebalancing of the expression and relevance of our Original Free Existence with modern-day legal opinions.

Attorneys who ignore our Original Free Existence are often encouraged by their Native leader to do so. This is because the Native leader is often uneducated in the law and legal history, extremely overwhelmed, perhaps scared, or maybe just lazy. If you educate them within the realm of truth about the law, they may shed their fears of misstepping or misspeaking and find a better way to fulfill their responsibilities to their Peoples and their ways of life.

We took our attorneys through a holistic education process. They were encouraged to get to know our people, to see our ways of life and participate when allowed, to never lose sight of the harshness that the Nation's membership and resources are enduring. If you are unwilling to do these things, you probably need to go work somewhere else.

Third suggestion: An organization must be created within the Federal Indian Law community that is truly 'in the know', willing to act on that knowledge as a source for all Native Nations to seek guidance and be able to incorporate it as part of a larger strategy to oppose the Doctrine of Christian Discovery. I am aware of some internal arguments within NARF (Native American Rights Fund) about this. But if NARF is not going to proactively be part of the solution in today's time, they need to get out of the way and let another organization begin the work.

The organization I propose must work with extreme due diligence and ever-present attention to detail and nuance. Native Leaders must be educated in a truthful and accurate manner. Although each respective Native Nation has no legal obligation to adhere to a larger strategy, eventually a strong united voice must come through NCAI (National Congress of American Indians) and each of the regional organizations in Native Country. If there are attorneys or leaders who are implementing strategy that may hurt everyone, the only way to address this is a strong united voice at national and regional levels.

Native Nations must understand that the incorporation of challenges to the Doctrine of Christian Discovery does not equate to automatic wins in the court room. A larger strategy may very well entail potential losses on the way to the goal of winning the legal war. This legal war has been waged against our peoples, ways of life, and the natural things of the world since 1823. It may take another 200 years to eliminate even the remnants of falsified religious pretense or outright lie. But it has to start somewhere.

In no way would I ever express these thoughts and suggestions to break or weaken anyone's spirit or will. I share them to strengthen your spirit. Because we need attorneys who are stronger in spirit than they are in allegiance to the standard practices of their profession.

Very briefly, in the realm of academia, I say this. There have been law professors who have taught the truth. There are more and more who are teaching the truth. But the manner of teaching by stating, "That's the truth and nothing can be done about it," must stop. Indeed, I must say one looks rather stupid in teaching that a system of domination exists, but there is nothing to be done about it. Especially when that system is based upon a lie or an adherence to a God of domination. Something must be done about it. The sustained existence not only of Native Nations and Peoples but of everyone in society is counting on it. Utilize your intelligence to understand that the Native Nations and Peoples are at ground zero in the system of a claimed right of domination. The same system of domination is coming for society in general. It already has, if you observe it correctly. People of all walks, races, backgrounds, and faiths, and the Natural World itself will not be spared domination.

Ok, where are we?

Oh yeah, that's why it wasn't quite Patrice's fault in resisting incorporating Doctrine awareness and arguments into the function of the Yakama Office of Legal Counsel. Because not only do most representatives of Federal or State governments not *truly* know what the Doctrine of Christian Discovery is, not only do most Native Nation Leaders not *truly* know what the Doctrine of Christian Discovery is, but most practicing Federal Indian Law attorneys also do not know what the Doctrine of Christian Discovery *truly* is.

Patrice was put into a predicament of having this young Chairman direct her to incorporate a thought process that conflicted with what she was taught. She knew that the potential of practicing law in this manner would be observed to be foreign; this is not the way attorneys practice, nor is it the way they communicate about their practice. By directing her to do so, I put her in a position to struggle to manifest something she was not only not taught, but something she could not look to in the practicing Federal Indian Law community for guidance or examples. It could be viewed that I compromised her professional standing and reputation within the Federal Indian Law community. I sensed this coming from her in our interactions, and I'm sure she knew that I understood her thoughts about this effort. I wasn't trying to be mean. I was beginning an advocacy of work that I believed necessary for addressing the wellbeing of the Yakama. We were doing something rarely, if ever, done. We were changing the manner by which legal representation manifested for the Yakama Nation. Change is never easy. It's not like it all happened at once, but the process began, and it demanded an extreme amount of courage from Patrice Kent as the lead attorney to do it.

We hired all young attorneys, essentially fresh out of Law School, to be part of her team. This was done by design because it is hard to teach an old dog new tricks. Older practicing attorneys are set in their ways. They utilize the knowledge and practice which has brought them success on behalf of their clients. Although winning remained the goal, the long-term shift in the function of the office was more important, and we understood that the shaping of young attorneys' minds and hearts would be a lot easier. The process was gradual, and it had to be. Every Native Nation has many irons in the fire, disputes or potential disputes that the Nation is engaged in. Yakama had hundreds. Navigating these disputes, more often than not, entailed a practice of law as normally viewed and understood. Whether I liked it or not, it was not feasible to demand that every dispute be addressed with the awareness of the Doctrine of Christian Discovery as its focus. So, the work entailed a mindfulness by which Doctrine discussions and critiques could be brought forth as potential future strategies.

The young attorneys brought on board were all tasked to begin to do their own research about the Doctrine. I wanted not only the foundation of Steve's knowledge and eventually Peter's to be within the hearts of our attorneys, but I wanted them to begin their own search for knowledge. Seek all that you can in the different contributions to the Doctrine's history from those who have researched that history. I needed our attorneys to become experts in their own right. They needed to buy into what they were being directed to do. By doing their own research and seeking knowledge for themselves they were able to refine for themselves a determination about why they were doing this work. Are we doing it simply because we were directed to by JoDe and the Executive Committee? Or do we really believe in the work? I needed them to believe in their work. Also, I needed to develop individuals with whom I could have more specific discussions exclusively from the Yakama perspective. The best way for me to do this was through this effort, even if it was a directive. There were a couple of them who took strong initiative, and it was good to see and watch.

It was during this time period that I had discussions with two of the attorneys, Ethan Jones and Marcus Shirzad, about what eventually became known as "cite traces". Both had taken a special interest in the advocacy for Doctrine awareness; because of that, I focused on dialog with them in the continued growth of their knowledge.

I was looking to create a visual tool to provide an understanding of how legal history was still alive in the present moment. In other words, how does current case law trace back to *Johnson v. McIntosh*? I knew it did; I wanted an additional educational tool to show it. So, I told them that they needed to create a map. I asked them to start with a current or recent case and look at the citations listed within that case and then go through the cited cases to see what cases they cited. I said, "Continue that process until you get back to the origin of Federal Indian Law, *Johnson v. McIntosh*. This is something you can summarize on one page so we can literally see a map of current cases and how they have a direct lineage to *Johnson*."

The ability to see the lineage of case law back to *Johnson v. McIntosh* and to see the interplay of doctrines like "plenary authority" became an invaluable tool. Marcus Shirzad brought me his first effort. It was what I had asked for, and with some revision it became the tool I had requested. I now have "case cite" maps to show people that a false religious pretense or a lie continues to frame our discussions about modern day disputes. It became an excellent tool for the development of future litigation strategy.

Educating Fellow Leaders

I must make it clear that although this was a very strong priority and advocacy of mine, it could not be done without the support of the Tribal Council Executive Committee, the full Yakama Nation Tribal Council, and eventually the Yakama General Council membership. Gaining this support was no easy task, and it too was a process.

The process was a continuation of education. Most, if not all, of the Council members were aware of my general advocacy of Doctrine awareness. As I assumed the role of Chair, I began to focus on advocating to my fellow Executive Committee members that the Doctrine was extremely important and relevant to our respective duties. It was the Executive Committee that authorized bringing Steve Newcomb to our Tribal Council chambers to help inform and educate our full Tribal Council. This visit entailed a viewing of the documentary, "The Doctrine of Discovery - Unmasking the Domination Code". The documentary introduces the

importance of context, detail, nuance, and the utilization of the English language as a weapon to manipulate all of the above at a deep level. It was well received and the discussion that followed emphasized that the information was very important historically and relevant to our day-to-day function. The Council members were introduced to something extremely important for their work. This cannot be emphasized enough.

Everyone has a general idea that the past is dark; but the first reaction to viewing the information in detail was: "Well that's history and I figured it wasn't good. I now have a better understanding of it, and yes, it is ugly. Wait a second, this history is still alive today? It's still being used against our Nation right now? As we speak? What does this mean for my day-to-day responsibilities?" This resulted in bringing Steve Newcomb in as a contract consultant through the Office of Legal Counsel.

Steve's arrival was a little awkward for the Office because the Nation had a number of attorneys and law firms that specialized in specific areas to help address the various disputes we were engaged in. Steve was not a licensed, practicing attorney. He did not graduate law school, and he was not admitted to the Federal Bar. So, from some perspectives, I believe this was viewed as somewhat of an insult to the attorneys. Some of the thoughts I sensed flowing around me throughout this effort were along the lines of: "How are we bringing this man in who does not practice law to be a part of our work? Bringing him aboard is an actual material step in shifting the thought of the office overall. It was one thing to discuss it in theory, and to be encouraged to know this history. But now to begin to incorporate it into the function of this Office? Have we hired this man in the effort to do that? We have dedicated time and effort, but now we are dedicating money to this? Like all areas of the Nation, everyone has a limited budget." Indeed, this action was taking from the limited fiscal resources dedicated to the function of Office of Legal Counsel and investing them into the formal contributions of Steve Newcomb. Once again, change is never easy and sometimes you have to put your money where your mouth is.

Who has the Gold Rules

Speaking of money, this is probably a good intersection to begin talking about Tribal Council budget and finance responsibilities. The Executive Committee has responsibility to manage and monitor all the finances of the Nation's function. As Chair, my duties included working with fellow Executive Committee members to oversee our Finance Department and Grants and Contracts Department. We worked with them to develop and pass annual budgets, ensure independent audits were conducted, and we signed all grants and contracts.

The greatest part of revenue to operate a Native Nation's day-to-day operations comes from outside sources, such as federal or private funding. There is also self-generated revenue—money the Nation makes for itself. All the money combined is utilized to formulate, budget, and administer the operation of the Nation. A review of every program and area of the Nation's operation and funding sources is done in this process. A budget is then passed for the year. A Native leader will observe that the largest percentage of money is from the Federal Government. There may be exceptions, but my belief is that it is similar for the majority of Native Nations. As a consequence of using somebody else's money to run your Nation, you have to play by their rules. The rules are set out in fine print in the grants and contracts that come to a Nation.

Grandpa: Chi Tamunwit Ewa Pa To Key Namiiow T'wunatush – 'This way of life was set down to follow.'

Chow Na Me'ow Nuck'New'E tush – 'Not to take care of.'

Mish Na Queet Queet Key Ut'twa'nata Coo E' Nuck New E'Ita Na Mii Yax'xi'xwit – 'If we follow it correctly, this way of life will turn around to become the caretaker of us.'

Grandson, we are one of the few, if not the only, peoples on this ground in which instructions were set down clearly. There are big laws that have come forth to be our caretakers: our language, our ceremonies, and our traditional foods collectively form our way of life. The instruction provided to us was to follow them in ceremony, song, and dance. This is the big difference from those who have come to be amongst us in these lands. We did not have to go to the grocery store, we did not have to farm, we did not buy such things. The instructions were clear: follow the ceremonies, sing the songs, and follow the foods, and they will take care of us forever. We cannot do this without the utilization of our language. Our salmon, deer, elk, buffalo, roots, berries, and above all, water provided themselves so long as we adhered to the sacredness of following. Who in this world practices ceremony, speaks, sings, and dances their very way of life into existence? We do. This is the love that our Creator has shown us the Ta'Nun, the Native People of this land.

Much can be said about monies that are distributed to Native Nations. But for anyone who is not Native, you must understand that money and its use was a foreign thing to us. Yes, there was trade and barter with our Peoples historically. The foundation of our system was based upon reciprocal transactions, transactions of value pertaining to our existence that were viewed as equal to one another. Money, on the other hand, can be manipulated in its value. Money can be accrued in various ways to shift the balance of a transaction from that of a reciprocal nature to outright robbery. Some of my grandparents grew up in a time when there was limited or no contact with settlers from a different civilization. So, the concept of money and its use is still very new to our people. But money has been the tool that has been utilized in changing us from *followers* of our way of life to *caretakers*.

The beginning of disbursements of monies to Native Nations started with annuities listed in Treaties, specific amounts of dollars negotiated and included within the Articles and Minutes of the Treaties. It must be understood that a Treaty is a contract. Within the Articles of the Yakama Treaty and the negotiations memorialized within the Minutes of the Treaty, there are very important contractual promises.

The Confederated Tribes and Bands of the Yakama Nation are made up of 14 bands of peoples. The promises expressed to our Chiefs in the negotiation of the Treaty were to be upheld forever. What Yakama gave up was the recognized land base of the respective 14 bands that would become the Yakama Nation. These lands totaled over one-third of the land base of what is currently known as Washington State. The United States offered Treaty promises to gain access to this land base. The land base is called the "ceded territory" of the Yakama Nation.

There is also a larger area called our Usual and Accustomed territory, that goes from the Pacific Ocean all the way to the Plains. We fished the ocean, and we hunted buffalo and carried

on our ways of life everywhere in this area. These practices are “reserved rights” memorialized in the Treaty between Yakama and the United States. The Treaty acknowledged the Yakama Nation reservation, which is 1.4 million acres. The Treaty promises spoke of ensuring the practice of our ways of life and access to the areas needed for that practice forever. They also spoke of education, health care, mills, agriculture, and other expressions that covered the sustained existence of the Yakama into the future.

So, although the disbursements of monies started with annuities, they continued as a fulfillment of the Treaty promises. They continue to this day. But you will see that I take exception with the manner in which they continue today.

I provide this brief history so you may develop a better understanding of the context for what I will share here shortly. There are many twists and turns throughout this history and I’m not here to go into all those details. Many individuals have contributed to this history, and if one wishes to seek them out for a better understanding, I encourage you to do so.

How ... Who has the Gold Rules

This discussion of money and how it is relevant to the Yakama Nation budget and finance function (we will get there) gives a context to the legal notion of Plenary Authority or Plenary Power claimed by the US in “federal Indian law”. Plenary Authority is the core doctrine of a fabricated power of the legislative branch of the United States to create new laws that may “abrogate” Treaties. It’s the so-called legal pathway by which the United States breaks its promises stated in Treaties. Because of my continued education from Steve Newcomb, Peter d’Errico, and the further analysis provided in cite traces and discussions within the Yakama Office of Legal Counsel, I have come to a pretty good understanding of “Plenary Power”.

“Plenary Power” reared its ugly head in the Supreme Court case *Cherokee Nation v. Georgia*,² under the name of the so-called “trust doctrine”. The trust doctrine was phrased as a “ward-guardian relationship” that the court said the US has with Native Nations. The trust doctrine was refined in another Supreme Court case, *United States v. Kagama*,³ that justified congressional acts as a tool to create new rules to “govern Indians”. It was solidified under the name “Plenary Authority” in *Lone Wolf v. Hitchcock*,⁴ which said that the US legislative branch may abrogate Treaties with Native Nations if it sees fit to do so. This is how the United States breaks the contract with the Yakama called the Treaty of 1855. And all Native Treaties for that matter.

The claim of “plenary power” is an extra-constitutional authority manifested out of thin air by the US judicial branch and given to the legislative branch. “Extra-Constitutional” means that this authority is not listed as a power of the legislative branch within the US Constitution; it was made up. What is further disgusting and revealing about this made-up authority is that each of the three cases, *Cherokee Nation v. Georgia*, *US v. Kagama*, and *Lone Wolf v. Hitchcock*, has direct lineage tracing back to *Johnson v. McIntosh*.⁵ So, a simplified yet truthful summary of Plenary Power is that it is falsified power based on a falsified religious pretense and outright

² *Cherokee Nation v. Georgia*, 30 U.S. 1 (1831).

³ *United States v. Kagama*, 118 U.S. 375 (1886).

⁴ *Lone Wolf v. Hitchcock*, 187 U.S. 553 (1903).

⁵ *Johnson v. McIntosh*, 21 U.S. (8 Wheat.) 543 (1823).

lie. The court gave this power to the legislative branch to justify breaking promises in Native Nation Treaties.

Treaties are referenced in the US Constitution as being the “highest law of the land”. So, let me get this straight. The United States lied about the lie, created by a lie that was founded upon lies, to explain a lie to create new lies and conceal all future lies... and this continues today while they are lying about all the lies that they lied about. Hmmm ... makes perfect sense if you don’t think about it. Anyway, that’s my very subtle and humble opinion about what Plenary Authority is.

Some examples of how this claim of legislative power to abrogate Treaties has manifested historically include the Major Crimes Act,⁶ General Allotment Act,⁷ Snyder Act,⁸ Indian Citizenship Act,⁹ Indian Reorganization Act,¹⁰ Indian Claims Commission Act,¹¹ McCarran Amendment,¹² and many others. All of these Acts have a history of a claimed right of domination. All are rooted in Supreme Court case law.

More recent examples of congressional power include the Indian Education Act¹³, Indian Health Care Improvement Act¹⁴, The Indian Self-Determination Act¹⁵, The American Indian Religious Freedom Act¹⁶, Indian Child Welfare Act¹⁷, Indian Gaming Regulatory Act¹⁸, Native American Grave Protection and Repatriation Act¹⁹, The Native American Housing Assistance and Self-Determination Act²⁰. These acts revise or attempt to “improve” earlier acts.

What is important to understand is that all of the acts, both historic and most recent, are based on the Supreme Court case law that establishes the claim of US “plenary power” over Native Nations’ functioning. The case law all traces back to the origin of Federal Indian Law, *Johnson v. McIntosh*.

“We want to do things the Yakama Way! We have a Treaty! Why do we do things like the outside world! It doesn’t work!” I heard this statement from our elder Council people a number of times as I conducted my Chairman duties.

“That is a beautiful expression,” I would respond. “Not too long ago we expressed our existence exclusively from our way of life, the Yakama way. We had a way that addressed the

⁶ 18 U.S.C. § 1153 (2022).

⁷ 25 U.S.C. § 1601 (2022).

⁸ 25 U.S.C. § 13 (2022).

⁹ 8 U.S.C. § 1401 (2022).

¹⁰ 25 U.S.C. § 461 (2022).

¹¹ 25 U.S.C. § 70 (2022).

¹² 43 U.S.C. § 666 (2022).

¹³ Public Law 93-638, Indian Self-Determination and Education Assistance Act, as Amended (1975).

¹⁴ 25 U.S.C. § 1601 (2022).

¹⁵ Public Law 93-638, Indian Self-Determination and Education Assistance Act, as Amended (1975).

¹⁶ 42 U.S.C. § 1996 (2022).

¹⁷ Indian Child Welfare Act, 25 U.S.C. §§ 1901–1963 (1988).

¹⁸ 25 U.S.C. § 2701 (2022).

¹⁹ 25 U.S.C. § 3001 (2022).

²⁰ 25 U.S.C. § 4101 (2022).

physical, mental, and spiritual wellbeing of our people. We had a way in which we lived within the balance of our surroundings. We provided our own understanding of housing, health care, education, law enforcement, justice, transportation, and everything else, all in the spirit of balance and reciprocal relations: Right and Respectful relations. The imposition of a foreign reality came to replace our Original Free Existence. One may proclaim that our Original Free Existence did not rely upon money, and I would agree. But the sustained imposition of domination has eliminated the resources that are necessary to live without money. This makes it nearly impossible to manifest our traditional Way of Life.”

So, let’s discuss why we can’t provide drug and alcohol treatment to our people the Yakama way. Let’s discuss why we can’t educate our children the Yakama way. Let’s discuss why we can’t protect our women and girls the Yakama way. The main reason is that, for the most part, we aren’t paying for it. Although we have a Treaty and the promises within it, this is unfortunately not the manner in which it is and has been applied.

Let us discuss drug and alcohol treatment. The history of how we provide this help to our people today starts with the *Snyder Act*²¹, revised by the *Indian Health Care Improvement Act*²². Every year, Congress passes a budget that the President signs and gives agencies of the federal government authority to administer. The process today, after twists and turns in history, is that we must pursue funds to provide health care – in this case, drug and alcohol treatment – through a competitive grant and contract process. The federal budget allocates funds to services that will administer health care on behalf of the respective Native Nations. IHS (Indian Health Service) clinics are in most cases designated as providers for general health care; other funds are set aside for contract care not provided at IHS.

Funding health care needs of 577 federally recognized Native Nations is not a priority of the United States. There is not enough money budgeted to provide care. One on the outside looking in might say the funding is significant. I would challenge that individual to sit down with the directors of the IHS clinics and the couple of hospitals that exist in Native country and listen to how severely those budgets are underfunded and how the outcomes are minimal services. It isn’t just the health care itself that the funding must provide for; it’s the administration of that care – all the administrative positions within these clinics that must be funded.

Here is the further unfortunate problem: funding to the Native Nations themselves is a competitive process. Not only is the overall service underfunded, but it pits Native Nations against one another as they plead for funding. Alcohol and drug treatment is a specialized service with specialized positions working within certified treatment centers. A small portion of the overall dollars set aside for treatment services is contracted out to these centers. These centers exist in their own framework of a competitive process.

What is the outcome of all of this?

The outcome is that when a Yakama enrolled member is ready for drug or alcohol treatment, the program that is utilized is not a Yakama program. The available programs have been

²¹ 25 U.S.C. § 13 (2022).

²² 25 U.S.C. § 1601 (2022).

shaped to fit into a competitive bidding process that forces them into a generic model most likely to “win” a competitive bid.

So back to our elders’ expressions, “We want to do this the Yakama way”. The funding system almost guarantees that we can’t provide drug and alcohol treatment to our people in the Yakama way. And because the services that are provided do not align with the Yakama way of life, they are generally unsuccessful in addressing the drug and alcohol challenges of our people.

The same situation, framed within the *Indian Education Act*, explains “why we can’t educate our Yakama children the Yakama way”. Essentially the same challenges exist with similar outcomes.

It is the same story with “why we can’t protect our Yakama woman and girls the Yakama way.” That situation is exacerbated by early Supreme Court case law which set the stage for the *Major Crimes Act*²³ and such recent legislation as the *Tribal Law & Order Act*, *Violence Against Women Act*, etc., that exists today.

So, it is the combination of Supreme Court case law and US legislative acts that establish the framework for how basic services – health care, education, law enforcement – are provided within a Native Nation’s day-to-day operations. The methods by which money is transferred to Native Nations and the rules and regulations for how services are to be provided are all implicated in the competitive grant and contract process.

The process lays out in fine print the relevant laws, rules, regulations, and legislation that must be followed to qualify to apply for receipt of funds. If you don’t adhere to the requirements, your application is rejected. If you do adhere, you *may* receive funding. I know all this because as the Chairman of the Budget and Finance Committee I had the signing authority for every grant and contract that existed within our Nation.

If you are following all of this, you may understand why I formulated some unique thoughts about the operation of our Nation. My thoughts about Nation functions were based on my growing understanding of the system of a claimed right of domination utilized by the United States to control our Nation. So, even though I had to operate within the function of our Nation as it had been understood up to that point, I was viewing and realizing deeper understandings of how the system of domination is dominating us on a day-to-day basis – in health care, human/social services, education, public safety, judicial systems, natural resource protection, housing, power development, land issues, water issues, cultural issues, and everything else that entails an administration of a Native Nation. I venture to say my understanding of that reality was different from most other leaders.

Initially, my opinions and observations were viewed within our own Yakama Nation administration and finance departments as, “He is against grants and contracts.” In fact, as much as my understanding made me in some ways totally against the grants and contracts, I knew that it was a part of the game that I had to play. Much in the same way that I couldn’t direct our attorneys to utilize Doctrine awareness in every legal fight or potential fight that we were in, I couldn’t insist that we no longer utilize grants and contracts in the function of our Nation. That would have deprived us of significant monies that enable our day-to-day

²³ 18 U.S.C. § 1153 (2022).

functions, with loss of jobs and services. But I had no doubt that there was a form of domination that was materializing in the funding process. This process has taken our Original Free Existence, "The Yakama Way," and replaced it with what the United States asserts will be the way. I believe this to be the case with every other Native Nation as well.

What did we do about all of this at Yakama?

We identified areas of our Nation's life that we wished to have more control over in administering services. During our annual budgeting sessions, we directed self-generated revenue (our own funds) to those areas. That way, the funding did not have outside strings attached in the form of grants and contracts. This allowed us more control over how those funds manifested in services to our people.

More control wasn't creating something new; it was trying to administer a function of our Nation that aligned with what we determined to be more of a Yakama way of doing things. We couldn't do this in a substantial way, because the needs of the Nation are vast and the funding that we generate to meet those needs is not. But we became mindful of what we were doing and why we were doing it.

What is the alternative to the domination funding process?

The alternative is a Native Nation generating enough money in its economic pursuits to self-fund the entirety of the Nation's functions. If you have enough money you've made on your own, you don't have to put your hand out to the Federal Government or other funding sources.

Why doesn't this happen? Because the framework of Supreme Court case law and legislation that governs self-determined acts of economic development for Native Nations is designed for failure, not success. The greatest exception is the success of casinos; but even they are governed within the framework of domination: IGRA, the *Indian Gaming Regulatory Act*²⁴. There are a few other exceptions in Native Countries where Nations have developed successful businesses.

For the most part, Native Nations are not welcomed into the established corporate market system of commodities that flow through and support the overall economy. Politically, when Native Nations become successful enough to infringe upon corporate market share, major corporations lobby for the creation of new laws to protect their market. Local, state, and federal representatives hear a great outcry from their voting bases that Native Nations are infringing upon the local economy by unfair practices of commerce. And that just can't happen, can it? We can't have Native Nations become financially successful and stable, can we? Even if that right is within their Treaty, supposedly protected by the US Constitution? That opposition uses case law and legislation to prevent the economic success of Native Nations.

These examples show how we are prey to a system of domination aimed at inhibiting our success, our ability to address in our own way the physical, mental, and spiritual wellbeing of our Peoples and ways of life. The domination is not about Right and Respectful Relations. It's about control. And if someone wishes to proclaim that it isn't about that, then I simply ask, why is that the outcome?

²⁴ 25 U.S.C. § 2701 (2022).

Our physical, mental, and spiritual wellbeing is in a collective state of chaos. When I observe and endure with my fellow Native Peoples all of the negativity manifested in our lands, I see the outcomes of a system of domination designed to keep us not only in a state of chaos, but in a state of subjection. When we attempt to address the system of domination, we are doing so within dispute resolution mechanisms that are appendages of the system of domination. Therefore, the outcomes are band-aids that are being put on the symptoms of being dominated. None of that truly addresses the real problem that is happening with Native Peoples and Nations. We are attempting to exist and thrive within the domination system.

Unfortunately, just about all Native Peoples and their respective Nations do not understand that it is designed this way on purpose. The success stories of those who have found a quality of life that they, and those that they love, feel good about, are a testimony to the resilience of our collective spirit. Those stories are few and far between in the chaos that the rest of our People live within. If you don't realize this, that's because it is out of your sight and therefore out of your mind.

Whenever the day arrives that we are afforded a pathway to truly address the physical, mental, and spiritual wellbeing of our Peoples and our ways of life, that liberating pathway will have a foundation of Right and Respectful Relations. When this time arrives, we as Native Peoples and Nations must take the initiative to do this work to the best of our ability "in and of ourselves, by ourselves, for all the right reasons." We will need support and tools to do this. We will not need a "guardian" looking over our shoulders to tell us that it is time to do this and how to do it.

There are many external thoughts and actions that must be addressed and corrected. But the hardest work will be addressing the internal thoughts and actions of our own Peoples and the challenges that will present themselves in doing so. Money is not the ultimate answer. But we have to address the physical needs of our Peoples to position them to begin to address their mental health. Money is at this point an unfortunate necessity. But the way it is generated should come from acts of true self determination, not handouts, and with mindfulness of the promises in the Treaties. When we begin to meet our physical needs and coordinate the process of addressing our collective mental health, the path to recognizing the truth of our spiritual lives will open. This is how we continue our process of healing. This is how a people overcome the imposition of the greatest genocidal acts in the known history of man. Whether or not this will ever be a priority of the United States remains to be seen, but if it is, the claim of "Plenary Authority" must be addressed.

That's what I have to say about the budgetary process of our Nation and the claim of Plenary Power. I now gracefully fall off of my high horse.

The Long March to Rome

An opportunity has arisen! I received a visit from our Chief Judge at the time, Ted Strong; he came to my office to discuss an effort that he was part of, called the "Long March to Rome". It entailed a group of individuals from various backgrounds who were coordinating a visit to the Vatican to meet with Pope Francis and the Pontifical Council on Justice and Peace. The purpose of the visit was to call upon the Holy See to formally and ceremonially revoke the historic Papal Bulls of domination that led to the Doctrine of Christian Discovery. Ted said he thought I would be a good representative to join this group. "Sounds good," I replied to Ted. I

then spoke with Steve Newcomb, who also knew people associated with the project and who were trying to convince him to join this effort as well. We took it upon ourselves to do some due diligence to understand the overall effort better. Ultimately, we both decided to take part.

In the build-up to this journey, I recognized that there would be many questions from my fellow Tribal Council members and our Yakama enrolled membership in general. I knew that if I wanted to do this in my capacity as Chairman of our Tribal Council, I would need both the Tribal Council's support and our Peoples' support in the General Council. I initiated a communication and education strategy for our membership with my fellow Tribal Council Executive Committee members. This entailed bringing Steve Newcomb back to our Nation for multiple viewings of his documentary at our Yakama Nation theater and the dialog that would follow. The Executive Committee agreed. The first screening was mandated viewing for our Tribal Director, Deputy Directors, and Program Managers of all the various departments of our Nation. We wanted our Administration to have a better understanding of all of this. Discussion and Q & A followed the viewing. In my view, it was a successful step in communication and education.

After the initial viewing, we offered additional screenings for our Yakama membership, leading up to our General Council meeting in fall of that year. At the meeting, we advocated that the documentary be shown to all our people so they may understand what the Doctrine of Christian Discovery is and, hopefully, gain their support for me to attend the Long March to Rome.

I must admit that I wasn't sure how our people would receive the information in the documentary, nor what the outcome would be. I didn't want to influence our people too much with my own words and advocacy. I wanted them to view the information for themselves and make their own determination as to what to do about it. The result was powerful.

The emotions of politics can kill a proposal, even one that is positive. Sometimes, on the drive home from a General Council meeting, about a 30-minute drive, I had to medicate myself as best I could because of the hurt or frustration I experienced at the meeting. I never wanted to bring that home to my family. The meeting about Christian Discovery and the Long March to Rome was not one of those meetings.

I said earlier that Yakama is a warrior Nation. What I didn't tell you was that our greatest warriors are our women and specifically our elder women. Many of them came up after the documentary and discussion and offered powerful testimony about how they believed the Doctrine impacted their lives, their parents' lives, their grandparents' lives. There were a few men as well, but the women led the way. Not only was the result that the General Council offered support for me to make the journey to the Vatican, but our people mandated that work continue to be done to address, document, and memorialize the impacts of the Doctrine of Christian Discovery specifically in regard to the Yakama. When I drove home that night, I remember feeling how proud I was to be Yakama. How proud I was of our people.

Now that the support of our people and the Yakama Tribal Council was offered, a formal Tribal Council Resolution was drafted and passed by the full Tribal Council. Tribal Council resolutions are the law for our Nation. This specific Resolution spoke directly to Pope Francis, the Vatican, and the Holy See seeking the revocation of the Papal Bulls of domination and the Doctrine of Christian Discovery.

The Long March to Rome happened. Thirteen representatives from various Nations and Peoples, including Yakama, Lenape, Umatilla, Shawnee, Apache, Lakota, First Nations (Canada), South American Natives, and Navajo, along with the help of some non-Native relatives who were critical to the success of the effort, made it happen. The entirety of the story is not mine to tell. But I will share that the Yakama Tribal Council Resolution was hand-delivered to Pope Francis and the Pontifical Council on Justice and Peace. To my knowledge, Yakama is the only Native Nation that has interacted with the Vatican formally in this manner, Nation to Nation, with governing documents memorializing the interaction. This was no longer my personal advocacy on behalf of my Nation. It was my Nation's advocacy on behalf of itself.

Standing Rock

The great struggle and beauty of Standing Rock is not my or our Nation's story to tell. But I will share some things that happened in Yakama's joining of all the other Nations and Peoples who took part in the defense of Standing Rock against the intrusion of an oil pipeline across their territory.

The Yakama Tribal Council decided to travel to Standing Rock and offer our support and help as best we could. The trip was organized with other Northwest Nations to coordinate our interactions. It was extremely important to us, as we knew it was to Standing Rock, that our interaction and help be expressed with Ceremony within our Ways of Life as Native Peoples and Nations, for the Spirit to bear witness as we offered support in more modern ways.

We were welcomed to the Standing Rock Council chambers and then into camp. I could see immediately that the situation was quite overwhelming. Their Chairman, Dave Archambault, Jr., and their Tribal Council members were handling it with graceful determination, and they took responsibility for what was happening. It was made clear to all of us that this was a prayerful and peaceful gathering. A balance of our expression and support had to be maintained respecting this observation.

We entered the camp in Ceremony with other Northwest Nations, and spiritual leaders welcomed us. We were allowed to conduct a Ceremony upon entering and the next morning specific to our Way of Life, for which we were grateful. Traditionally within camp, our elder who has become my uncle, Virgil Taken Alive, and others kept us all in line; we had beautiful sharing of time with one another.

We formed relationships with Chairman Archambault and Council Members Charles Walker, Cody Two Bears, and others. We had told them earlier that it was our belief they may lose their initial legal filing seeking an injunction to stop the work of the pipeline. We offered to share how we believed the Doctrine was very relevant to their fight, and that we would be more than willing to share what we knew about it. Indeed, legal challenges happened at the beginning of the fight, throughout it, and they remain today.

We offered the assistance of our legal team, and our attorneys took part in update and strategy calls concerning the litigation. During these calls, our lead attorney Patrice Kent advocated for the insertion of Doctrine arguments into the legal strategy. She did so at my request, and when she did her advocacy was met with silence. There is much that can be said about this, but what it comes down to is that the legal minds tasked with representing Standing Rock observed no benefit to inserting Doctrine arguments into the case.

After an initial denial of a Preliminary Injunction to halt the pipeline work, Dave Archambault and Charles Walker asked us to come back and present how we believed the Doctrine was affecting their fight. The Yakama Tribal Council decided that we would reach out to Steve Newcomb and he and I would travel to Standing Rock to do a presentation.

I requested the Yakama Office of Legal Counsel to prepare a cite trace on the Army Corp of Engineers' court filing opposing Standing Rock's request for a preliminary injunction — a cite trace back to *Johnson v. McIntosh*. We took that, and Steve brought a copy of the doctrine documentary. The Standing Rock Tribal Council first viewed the documentary and then followed it with me walking through the cite trace analysis of the Corp of Engineers' brief in opposition to a Preliminary Injunction. The Standing Rock leaders discussed in-depth what they could do with what they now had become aware of. They were not reluctant, they were not reserved, and it was very clear they were not afraid to challenge the Doctrine of Christian Discovery and Domination. Because the initial legal strategy had ignored the Doctrine, there would once again be a challenge to insert Doctrine arguments into the legal filings.

The Council discussion shifted to a Standing Rock March and Gathering that was about to happen at Washington, D.C. The question was posed, "Are you guys going to be attending the gathering at Washington, D.C. in March?" Steve and I replied "Yes." And we wondered, "What could we do there with all of this?"

Eventually, the idea was broached and agreed upon to develop a joint Proclamation issued by Standing Rock and the Yakama Nation. We traveled home with some time to prepare, as the gathering was a couple of months away. Upon my return I provided an update to the Yakama Council, who all supported the effort.

Steve, Peter, and I all began working on a draft Proclamation. After much discussion and editing with Standing Rock and Yakama leadership, a Proclamation was finalized. The "Native Nations Rise" gathering was scheduled for March 10th, 2017, and we were ready with the Proclamation. Meanwhile, a transition had happened from an Obama Administration to a Trump Administration, and all of the implications of that change were on our minds and hearts.

I arrived the morning of the gathering and I remember looking outside and seeing it was raining. I had planned on wearing my traditional regalia and pondered whether to wear my moccasins or just shoes. On a day like this, our Mother Earth wants to feel my moccasins, so that's what I wore. I caught a taxi to the Corp of Engineers headquarters where the event would begin, going from there to the White House where a stage was set up for speeches and musical performances. As I got out of the taxi, I stepped into what was now sleet. From rain to sleet. Fitting, I thought to myself. As I made my way over to the crowd that was gathered, I recognized some relatives who said to me they wanted the children and the elders at the front of the March. "Sounds good to me," I replied. After some visiting, I decided to head to the back of the procession. I ran into Steve, and we talked, and I told him where I was going to begin. He said ok and that he was going to be somewhere in the middle of the procession and was catching up with friends and relatives himself. I continued walking and came across my good friend Fawn Sharpe, at the time the President of ATNI (Affiliated Tribes of Northwest Indians) and President of Quinault Nation. She eventually served as President of the NCAI (National Congress of American Indians). She asked where I was headed and I told her, "To

the back", and she asked if she could join me. "Sure thing," I replied. So that's where we went and after a short while the procession to the White House began. Snow began to fall.

While we walked, Fawn and I had a good discussion about the challenges we face as Native Nations and Peoples. The discussion shifted to the Doctrine of Christian Discovery, and I was able to share with her a little of what we were doing that day.

The day was beautiful, and it was a strong gathering. At Trump Plaza, there were other relatives who had set up a teepee as part of the protest; we prayerfully and peacefully walked by in support.

When we arrived at the stage, there were a lot of people already gathered. I tracked down Dave Archambault, Jr., and he said we are up first. So, right up onto the stage we went; he had a number of youths from Standing Rock with him, the youths who had first made the stand against the pipeline.

I watched as Dave spoke in the build-up to the reading of the Proclamation. There were many in the crowd who blamed Dave and the Standing Rock Council for shutting down the camp at Standing Rock. They expressed their anger in boos and name calling. I watched the children who had started it all standing by his side in tears as they heard the ugly name calling and boos. He took it all in grace, remaining peaceful and prayerful. There is much to say about why camp was taken down. I know of some of the things that Dave and the Standing Rock Council took into consideration, but that is their story to tell. I can say that what I observed was they had the safety and wellbeing of everyone in mind. That is an extremely heavy responsibility. There were good reasons for their decisions. Dave finished his talk with expressions of his love for everyone, including those who were upset with him.

I was next up, and it was hard to maintain my composure in the face of what had just happened. I read the Proclamation and tried my best to encourage all those who were present to remain united in spirit and in voice. When finished, I spoke with my brother Dave and encouraged and thanked him for taking this stand. Many watched and questioned my support of Dave. Some who were bold enough came and asked why I stood by his side. "Because he is a real leader," I said. "You don't know everything that they have had to endure in all of this, and in truth neither do I. But I can tell you that from what I have observed that they walk in the spirit of integrity, to the best of their ability in the face of great challenges. None of us will ever know the kinds of tests they were put through as the world watched, and most of us would not have been able to maintain integrity through those tests. Anyone who would proclaim that they could have never endured the challenges of true leadership."

Some gathered around me and said, "So you don't think they sold us all out?" I laughed and said, "Did you not see what just happened? They issued a Proclamation that spoke directly to the root and cause not only of their fight, but of all of ours. You've come to question me as to why I refuse to spit in their face for doing so? I asked all of you as I read the Proclamation if you understood. I can tell by what you are asking me that you aren't quite there in your understanding. But you are my relatives and I'm not here to boo in your face or call you names. I hope you can eventually understand what just happened. If you do, whatever hate or anger you have within your heart about what happened with camp will be overcome by the love of the stand and Proclamation that was just made. If Dave or the Standing Rock Council

didn't believe in this fight with everything they have, why did they just shoot an arrow at the heart of the beast?"

The outcome of Standing Rock's fight is still in question. The complications of the legal and political fight remain challenging, as with all of the fights of Native Nations. Yet I hope that one never loses sight of the simple explanation for why we so often lose, why the water loses, the land, the air, and the animals. The Standing Rock fight is a mixture of case law and legislation all founded and traceable back to the Doctrine of Christian Discovery. It is the same for all of the Native Nations and their Ways of Life. The leadership of Standing Rock and Yakama recognized the truth of this form of domination and acted against it with the Proclamation. An advocacy that started with Yakama to become aware of and to act against the domination system has evolved into joining with another Native Nation to do so. Standing Rock and Yakama used this opportunity to call upon all Native Nations and all Original Free Nations of the World to join them.

Fighting the Doctrine in the Supreme Court

The Yakama Nation is a Nation. One of its functions is to authorize and support enrolled members of the Nation who wish to conduct business within the Nation, by issuing business licenses and securing adherence to the laws and regulations of the Nation.

Kip Ramsey is one such enrolled member. He had secured a business license to transport and deliver fuel to Yakama fuel retailers within the boundaries of the Yakama Nation. His business is called Cougar Den, Inc. After becoming licensed to conduct this business, the Washington State Department of Licensing said they had a right to regulate and tax his business. Mr. Ramsey argued that they did not, that he was licensed and regulated by the Yakama Nation in the conduct of business. That his right was secured and protected by the Yakama Treaty of 1855.

This dispute navigated its way up to the Washington State Supreme Court, which, ironically, ruled in favor of Cougar Den, Inc., and Mr. Ramsey. It reaffirmed and ruled in favor of the Yakama Nation Treaty. Dissatisfied with the ruling, the Washington State Attorney General petitioned the Supreme Court of the United States to hear the case. The court decided to hear the case.

In Yakama's history with United States Supreme Court decisions, some are wins and some are losses. Here we were in 2017-18 preparing once again to take a dispute to the Supreme Court. Mr. Ramsey secured his own attorneys throughout the adjudication in Washington State, although Yakama Nation also had representation on behalf of the Nation. He retained his attorneys for the US Supreme Court proceedings and added an additional law firm that had Supreme Court experience. Up to this point, they had utilized Treaty arguments and case law affirming Treaty rights to secure the victory at the State Supreme Court.

In the middle of the Standing Rock effort, we again transitioned lead attorneys for the Yakama Nation. Patrice Kent decided to leave her position, which left a vacancy. The Executive Committee decided to go with one of our young bright attorneys, Mr. Ethan Jones, to fill the position. Marcus Shirzad became his second-in-command, and we now had seven attorneys in the Office of Legal Counsel. We had grown quite a bit since Mr. Jones was carrying the office by himself. Although the whole office had become well-versed in the Doctrine, Mr. Jones and Mr. Shirzad were my go-to attorneys for Doctrine discussion and work. Both had done

significant work continuing to educate themselves about the Doctrine. I tasked Mr. Jones to work the hardest and to develop a thought process about the Doctrine both outside and inside the framework of Federal Indian Law. Not only did he accomplish this, but he understood why he was asked to do it; more importantly, he believed in why he was asked to do it.

We had utilized a contracted law firm to represent the Yakama Nation during the Washington State proceedings. I had something else in mind for the US Supreme Court.

A meeting was scheduled with the Tribal Council Executive Committee to discuss the potential of filing an *amicus* ("friend of the court") brief in the Cougar Den case and inserting Doctrine arguments into the brief. The Committee agreed to begin the process of developing what a brief might look like, noting at length that the only ones up to this point who were versed in the Doctrine well enough in the way we wished to use it were our own attorneys in the Office of Legal Counsel. It was not final, but I got the ok from the Committee to proceed with our own attorneys. I shared the good news with Mr. Jones and Mr. Shirzad. They would be tasked in creating this brief. The expectation was that they had had enough education and interaction with Steve, Peter, and me and done all the other research to achieve the task. They went to work.

One of the steps we took was to meet with Mr. Ramsey and his legal team to discuss legal strategy. I indicated that there was a potential that the Nation may be filing a brief that included Doctrine of Christian Discovery arguments. I was met with confusion from his attorneys. They didn't understand, but at this point thought it was just talk. The Yakama Nation was not a party to the case, but Cougar Den, Inc., was licensed by the Yakama Nation, and we viewed it as a Yakama Nation case because the Treaty and the rights afforded within it were at the core of controversy.

One of the questions that came up was what side the United States would be on. They had a choice of picking the side of the Yakama Nation and its Treaty of 1855 they were the only other party to. Or they could side with the Washington State Department of Licensing and its assertion to regulate and tax. At the state level, the US had filed an *amicus* brief taking Washington's side.

As our planning continued, we scheduled to meet with the US Department of Interior, the Solicitor General's Office, and the Department of Justice. From what I understand, there was a similar meeting with the Washington State Department of Licensing and the Washington State Attorney General's office. The purpose was simple: to convince the United States which side to be on going forward.

I had tasked Mr. Shirzad to do a cite trace of the Washington State Department of Licensing's legal arguments in the State Supreme Court: to take the cases they were utilizing as judicial precedent and trace each of them back to *Johnson v. McIntosh*. There were three cases that essentially formulated their argument: *Mescalero Apache Tribe v. Jones*²⁵, *Wagnon v. Prairie Band of Potawatomi*²⁶, and *Chickasaw Nation v. United States*²⁷). As foreseen, each of the three cases traces back to *Johnson v. McIntosh*. These cases did not involve the Yakama Treaty, or the

²⁵ *Mescalero Apache Tribe v. Jones*, 411 U.S. 145 (1973).

²⁶ *Wagnon v. Prairie Band Potawatomi Nation*, 546 U.S. 95 (2005).

²⁷ *Chickasaw Nation v. United States*, 534 U.S. 84 (2001).

unique rights reserved within it. The facts of the cases were asserted to be similar from the State of Washington's perspective, as far as the right for a state to tax and regulate Native commerce. The three cases were the foundation of their argument that the State of Washington's Department of Licensing should win, and Cougar Den and Yakama should lose.

With the cite traces in hand, Mr. Shirzad and I traveled to Washington, D.C. We were led to a room within the Department of Justice with a fairly large table. When we entered, there was a large group of federal attorneys waiting for us. Also present were Cougar Den, Inc.'s attorneys. The meeting began and for the most part Marcus and I were silent as we observed the back and forth from Cougar Den's lawyers and the federal attorneys. As dialog was flowing back and forth, I began to hear references to the three cases that were the foundation of the State of Washington's argument. I heard references again and again. I couldn't help it anymore because every time I heard one of three cases being referenced, I thought about the layers of deceit that surrounded the lineage of each case and the interplay of "Plenary Authority" that was connecting all of them back to *Johnson v. McIntosh*.

Finally, I interrupted the discussion and said, "How can you give such significance to *Mescalero Apache Tribe v. Jones* when it traces back to ... which traces back to, which traces back to *Johnson v. McIntosh*?" The room went silent for a moment. It's as if I could read their minds. The federal attorneys probably thought: "What the hell is this person talking about and who let him into this meeting?" Cougar Den's attorneys probably thought: "Shut the hell up, Chairman Goudy; you are going to piss these guys off and for sure they'll choose to pick the side of Washington State!"

After a short pause, they began to discuss again, without acknowledging my reference to the lineage of the *Mescalero Apache* case. I took it in stride, and soon enough another case was referenced. So, I interrupted again and said, "Well why would you support the use of *Wagon v. Prairie Band of Potawatomi* when it traces back to... which traces back to... which traces back to... which traces back to *Johnson v. McIntosh*?" And before they could ignore me again, I added, "And as far as *Chickasaw Nation v. United States*, it's the same. It traces back to such and such and such and such and that traces back to *Johnson v. McIntosh*."

I now believed my interruptions pissed everybody off. "Who the hell does this young Chairman think he is in here, talking to us attorneys about citations of cases and why they aren't relevant to the arguments. These are the center pieces of the arguments and if this naive young person weren't the Chairman of his Nation, we would have him escorted out of the meeting." Believe me, this was the thought of just about everybody in the room, especially Cougar Den's attorneys. Two people, I believe, understood what I was saying and doing: Marcus Shirzad, our Yakama attorney, and one federal attorney sitting in the corner who didn't say one word throughout the meeting. I could tell by the look on his face that he knew exactly what I was talking about, and that look was one of slight admiration and absolute fear.

The meeting wrapped up and there was a feeling in the room that there's a good chance that the federal side will align its position with Cougar Den and the Yakama Nation, but I wish JoDe Goudy never came. The ultimate outcome was the United States Federal Government decided to align its position with the State of Washington's Department of Licensing, as at the state level.

I'm sure there are people today who will tell you that I am the reason why that decision was made. My response would be hell yes, I am. I was the only Yakama in the room that day and I watched an exercise of smoke and mirrors, and awkwardly dancing arguments founded in lies spoken of as absolutes. A room full of men discussing the future of Yakama who had no vested interest in the outcome of the case. They were all full of shit and I called them out on it. But they didn't understand what I did. Maybe perhaps after, if ever, they read the Yakama *amicus* brief they perhaps understand. The stakes were high; that is true. A Yakama man had his business and his livelihood at stake. His family, his employees, the potential negative precedent that this case would set if lost. But the exposure of the lie that is the foundation of Federal Indian Law was more important than all of that. And I wouldn't have been a leader if I didn't make that determination.

Now that the federal side had made their determination, we were moving forward. Mr. Ramsey secured an additional attorney who had successful experience in arguing before the Supreme Court. An arrangement was made to have this new attorney join with his other attorneys to meet with the Yakama Nation Tribal Council. Although this man would be providing oral arguments on behalf of Cougar Den, Inc., he still in essence represented Yakama, because the outcome would affect us all. He was a sharp attorney, a good man, and looked to be a good selection by Cougar Den. After we had met with him, he exited and there was a request from the other attorneys to stay and discuss a few other things regarding the case.

Essentially, the question came down to what type of *amicus* brief was Yakama Nation going to file. Their team already knew I was advocating to insert Doctrine arguments into the brief. So, I broke the news to them: Yes, we will be asserting arguments challenging the Doctrine of Christian Discovery as well as making Treaty arguments. It's as though for a brief moment I took the wind out of their chests. When I said those words, they foresaw a negative outcome and looked defeat in the eyes, if only for a brief moment before the "heroic spirit" rose in their lead attorney. He said, "Mr. Chairman, if you insert those arguments into the brief, you will upset the Supreme Court Justices. We do not need them to be upset, we need them to be our allies. We are asking you to reconsider inserting the arguments that reference the Doctrine."

I listened to what he had to say. It almost sounded like begging. The more I listened, the more pissed off I became. This non-Native attorney was attempting to tell a Nation what to do. He didn't take time to understand anything, let alone the totality of what we had attempted to explain about the importance of the Doctrine arguments. If he had, he sure as hell wouldn't have said what he said. I let him have it, and, quite honestly, nearly kicked him out of the Tribal Council Chambers. After a while I paused, and his associate attempted to conduct damage control. For a brief moment, this Hispanic attorney showed a glimpse of truly understanding why we were doing what we were doing. Either way, there was no consideration by us to agree with what they were asking. I do not hold anything personally against any of these attorneys. They were there to represent their client and they were attempting to do so with the skill set they were taught. But at the end of the day, we are a Nation, and no way in hell does the legal tail wag the Nation dog around here. Not on my watch.

We continued to work on the brief. I had our attorneys forward the brief to Steve Newcomb and Peter d'Errico, and they took a look before the final draft was agreed upon. Other than a

couple of word changes, they were quite pleased with the brief that Mr. Ethan Jones and Mr. Marcus Shirzad had developed. The brief was filed; and, low and behold, I woke up the next morning and the sky was still there. It was history. The very first time in the history of the United States that a Native Nation directly issued a full-throated challenge to the Doctrine of Christian Discovery in the Supreme Court. We had accomplished that. Now we prepared to go to Washington, D.C., to witness the oral arguments.

A few weeks before the oral arguments, our attorneys said there may be some regulations that must be followed by those who would attend the arguments. Specifically, there was a reference to me that, if I planned on wearing my traditional attire, I would probably not be allowed to wear my Warbonnet/Headdress. I said, "Well, we'll have to pick a fight over that"; but really, I didn't give it much thought. About a week before the oral arguments, the message was repeated, pretty much as a mandate: no Warbonnet/Headdress will be allowed.

I immediately made up my mind. I was either going to be allowed to wear it or I wasn't going into the courtroom. I was the Chairman of the Yakama Nation Tribal Council. I was raised by my elders to dress appropriately when you serve your people. My Warbonnet/Headdress was made and given to me in Ceremony. Some of my own people accused me of wearing it like a crown. Despite that criticism, I followed the instructions of my elders; every time I represented our Nation in a significant way, I dressed in these items. This is who I am. I'm not going to allow some court rule to dictate the manner in which I stand before our Creator as I watch man lay judgement down on our People and Nation. If the Supreme Court wishes to assert its judgment in such a manner, I simply will not go in.

Mind you this wasn't just a Supreme Court case. This was the first time in history that a Native Nation was going to shine full light on the darkness that is the Doctrine of Christian Discovery. And the court was going to assert judgement about what I could wear within its chambers? No, we are going to fight it. So, I showed up; and yes, I knew there was a chance they wouldn't let me in. But you don't know until you try. After discussion with a few other Yakamas attending court, I decided it's time to see what happens. So, I went in. The Chief of the Capital Police was waiting for me.

As I attempted to make my way, he stepped in front and asked to speak with me. We then engaged in an argument, though a civil one. He was a good man, respectful, and simply doing his job. Because of this, I remained as civil as I could as I expressed some things to him. The discussion went on for a while, but it became quite clear that unless I took off my Warbonnet/Headdress I wasn't going to be allowed in. I said to myself, "OK, well I'll just go outside and wait." I had a discussion with the statue of Chief Justice John Marshall before I exited the building.

I went out the side door and walked around to the front of the court. I thought to myself, I need to be next to something natural. The only thing I could see was the water coming out of the fountain in front of the court. I went and stood by the water, and I began to sing our songs and pray. I sang all the way through the oral arguments. While this was happening, there was a sign that I observed. It made me feel humbled, but also stronger. Soon another sign came, and I was content that the Spirit was there that day. After a while, the front doors to the court opened. Our people began to walk out and down the stairs. I was greeted by a young lady I knew as she came down the stairs. It was Patrice Kent, our former lead attorney. She gave me a

hug and turned and said, "Wow! Do you see that? There are two bald eagles circling the dome of the Supreme Court." I told her, "Yeah, they've been there for a little while now."

Eventually the ruling came out. Cougar Den, Inc., and the Yakama Nation had won the Supreme Court Case. In waiting for the ruling, I wasn't quite sure what the outcome would be, and I was prepared to accept the loss if it happened. This may not have been a popular stance from Mr. Kip Ramsey's view, nor Cougar Den's, but it was my position. None of them understood the relevance of the *amicus* filing that had happened. Because before that filing, there was not one brief anyone in this world could cite or reference where a Native Nation directly and squarely challenged the Doctrine of Christian Discovery in the Supreme Court. That filing was an important step that had to happen. I will tell you now that if the outcome had been a loss, I still would have proclaimed a victory, because you and everyone else could find the brief filed by the Yakama Nation.

This is about the 500-year war that has been waged upon our Waters, Lands, Air, and Animal Relatives, upon our Nations, Peoples, and Ways of Life. This is a war of thought, thoughts that have manifested in the form of case law in the judicial branch of the United States, thoughts that have manifested in statutes and policies through the legislative and executive branches of the United States. All these thoughts, cases, and statutes rest on a false religious pretense or an outright lie at their foundation.

Transition

In the late fall of 2019, I made the determination to resign from the Yakama Tribal Council and relinquish my Chairmanship. Ultimately, it came down to a choice of my family or continuing to serve. Many things contributed to my decision. All of them were outcomes related to circumstances created by the domination system.

I often reflect upon what life presented me throughout this period. In many ways, I would proclaim I was cursed with information in all shapes and forms. The trials and tribulations that come with being of service to your Nation, your People, and your Ways of Life can be quite challenging. I had promised myself that no matter what happened throughout my time on the Yakama Nation Tribal Council, I would not allow it to change me: Who I am. Where I come from. Where I wish to go. My understanding of what is. My understanding of what isn't. My understanding of why.

The truth is my heart was broken in many ways by many people. There are individuals who would say they do not believe me to be a person of integrity. I have been misunderstood, lied about, used, slandered, and in some ways deeply betrayed by my own People. Yet I realize that this is not a fight against my own People. It also is not a fight with individuals who I may identify as being part of the system of domination. This is an effort to achieve Right and Respectful Relations. It is not important to me that people who may have taken part in breaking my heart come forth to heal my heart. It is important to me that the spirit of integrity manifest into their lives at the crossroads of their daily decision-making process.

The irony is that I contributed to significant acts to help address the system of domination; and yet in many ways I felt the greatest spirit of domination coming internally from my own People. There is more to it all, and perhaps I will attempt to contribute something to address that observation in the future. But for now, I simply say. "Integrity led me to my decision to

step away from the Council." Not integrity in the eyes of man or woman, but, to the best of my understanding, integrity in the eyes of our Creator.

I offer my words as representations of my life experience in the capacity of a person who was asked to serve his People and Nation, who looked in depth to what could be done to address their physical, mental, and spiritual wellbeing.

I often tell my children, "The truth of life is that life is indeed a stage. The key to life is to act with integrity regardless of what is presented on your individual stage." Life often presents us examples of wrong and disrespectful relations, the outcome of countless individual decisions and reactions to those decisions.

There are things done in the world that do not represent a true light but represent a reflection of light with the outcome of darkness. A detailed observation reveals these to be deliberate acts of domination.

It must be acknowledged that there are many great accomplishments that have manifested in spite of the system of domination; accomplishments by great women and men who have throughout time sustained our existence. Yet my assessment of what it would take to get us collectively out of a state of survival and into a state of thriving in our existence on our own terms, values, and lands would be to truly address the system of domination.

Can one imagine what beauty would manifest if Native leaders were able to truly address the wellbeing of their Peoples absent utilizing a system designed for our failure? This would entail addressing the thoughts and actions that have manifested this system, the most significant being the Doctrine of Christian Discovery relied on by the United States as a foundational justification of its interrelationship with Native Nations.

Challenging Christian Discovery is not a hard thing to do. It is a fearful thing to do. Who would actually fear the dismantling of such a system? Well, I guess the United States and anyone who benefits from its imposition would fear such efforts. What is the United States? Where does it come from? Where is it going? What is reality from the United States perspective? What isn't reality? And Why?

My contributions to this work have continued since I stepped away from elected leadership. I created an educational platform called Redthought.org. It entails continued work with my good relatives, Steve Newcomb and Peter d'Errico. The work has evolved. That's about all I wish to share at this time in my life.